

United States District Court for the Northern District of West Virginia

Asterglen Freight Software, Inc. v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC

Partial Judgment as to Count I

Civil Action No. SYN-NDWV-25-CV-0618 District ECF No. 61 — Entered February 4, 2026

Pursuant to the Court's January 12, 2026 memorandum opinion and order granting Copper Kestrel Logistics, LLC's motion for partial summary judgment, and pursuant to the Court's February 4, 2026 order directing entry of a separate judgment, judgment is ENTERED in favor of Copper Kestrel Logistics, LLC and against Asterglen Freight Software, Inc. on Count I of the Complaint.

Count I, which seeks \$480,000 on Asterglen's contract claim against Copper, is DISMISSED WITH PREJUDICE. Asterglen shall take nothing from Copper on Count I under the judgment entered today. This separate document records only the disposition of that count and does not enlarge, revise, or supply additional reasoning for the Court's January 12 merits ruling or its February 4 direction.

This judgment does not adjudicate Count II against Meridian Silt Holdings, LLC. It does not adjudicate Copper's amended counterclaim against Asterglen, including Copper's demand for \$120,000. Those claims remain on the active district-court docket. Costs attributable to the entire action are not fixed by this partial judgment and remain subject to later determination as permitted by the rules and final disposition of the pending claims.

Scope and docket direction

The Clerk shall enter this partial judgment on February 4, 2026 and provide electronic notice to all counsel of record. The civil action shall remain open because Count II and the amended counterclaim have not been resolved. No statistical closing of the entire case is authorized, and no party is relieved of an existing obligation concerning the pending claims unless a later order provides otherwise.

This judgment contains no adjudication of Meridian's alleged interference, the cause or amount of any loss claimed against Meridian, Copper's counterclaim theory, a possible offset, or the parties' remaining factual disputes. It does not stay discovery, trial preparation, settlement activity, or enforcement matters concerning any later judgment. Any request for a stay or a revised schedule must be made separately and decided by the Court.

The judgment is set out separately from the Court's opinions and orders. Its terms are confined to Count I and to the parties aligned on that claim. No additional findings or determinations are included in this document. The Clerk shall retain the January 12 memorandum opinion and order, the February 4 order, and this judgment as distinct docket entries so that the source and scope of each judicial act remain clear.

Entered this 4th day of February, 2026.

/s/ Clerk, United States District Court